

Court No. - 40

Case :- WRIT - C No. - 14152 of 2025

Petitioner :- Rajendra Prasad Memorial Trust

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Anuj Kumar Sharma, Rakesh Bhushan Dubey, Shailesh Kumar Tiwari

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Shekhar B. Saraf, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

Heard learned counsel for the petitioner, the learned Standing Counsel appearing for the State and Sri Udit Chandra, learned counsel appearing for the respondent Nos. 2 to 4, the Electricity Department.

This is a writ petition under Article 226 of the Constitution of the India, wherein the petitioner-Trust is seeking a direction to the respondent-Electricity Department to receive the actual amount due from the petitioner, in easy installments and also to restore the electricity connection of the petitioner that has been disconnected by the department. A further direction is also sought to the respondents restraining them from collecting the penalty imposed upon the petitioner due to non-payment of electricity dues.

After hearing the parties, we find that the matter relates to dispute regarding electricity bill and the amount which is being demanded by the respondents.

Learned counsel for the respondents submits that for redressal of such grievance, the petitioner has an effective alternative remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

Learned counsel for the petitioner could not dispute the same.

Accordingly, the petition stands **disposed of** with liberty granted to the petitioner to file a fresh application under Clause 6.5 of the U.P. Electricity Supply Code, 2005. If such an application is filed before the concerned respondent within a period of two weeks from date, the respondent authority shall consider the same and dispose it of within a period of eight weeks from the date of filing of such application.

Order Date :- 7.5.2025

Arun K. Singh

[Dr. Y.K. Srivastava, J.] [Shekhar B. Saraf, J.]